

Court No. - 21

Case :- WRIT - C No. - 27845 of 2016

Petitioner :- Krishna Gopal

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Ravindra Kumar Tripathi

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble V.K. Shukla, Acting Chief Justice

Hon'ble Yashwant Varma, J.

Krishna Gopal is before this Court with a submission that his electricity connection is liable to be reconnected.

On the matter being taken up today, Sri Anshul Kumar Singhal, Advocate, holding brief of Sri Chandan Agarwal, Advocate, stated before us that the case in hand is one of theft of electricity and it has also been stated that provisional assessment has already been made on 18.4.2016 and within the time frame provided for statutory objections have not at all been filed by the petitioner.

From the side of the petitioner it is being sought to be stated before us that till date the impugned provisional assessment order has not at all been supplied to him.

Learned counsel for the electricity department has supplied a copy of the provisional assessment to the learned counsel for the petitioner in the Court.

Consequently, we ***dispose of*** the present writ petition with a direction that it is always open to the petitioner to file his objections against the said provisional assessment within ten days from today and in case the said objections have been filed the authority concerned would take a final call on the same within three weeks from the date of receipt of said objections alongwith certified copy of this order and, thereafter, based on the same it is always open to the petitioner to invoke further remedial forum as is provided for under Electricity Act 2003 read with U.P. Electricity Supply Code 2005.

Order Date :- 6.6.2016

Shekhar